

TENTATIVE RULINGS

Date: September 3, 2026

#	Case Name	Tentative
1.	30-2026-01563392 Everon, LLC vs. Federal Technology Solutions, Inc.	1. Motion to Appear Pro Hac Vice The unopposed application of attorney Poston E. Pritchett to appear pro hac vice for Plaintiff Everon, LLC f/k/a ADT Commercial LLC is GRANTED.
2.	30-2021-01231249 Pal vs. US Bank, N.A	1. Case Management Conference 2. Demurrer to Amended Complaint Defendant US Bank, N.A. (“Defendant”) demurs to all causes of action alleged in the operative Second Amended Complaint (“SAC”). The SAC contains the following causes of action: (1) breach of contract, (2) implied breach of contract, (3) negligent misrepresentation, (4) fraudulent misrepresentation, (5) constructive fraud, (6) trespass, (7) wrongful repossession, (8) conversion of personal property, (9) declaratory relief, (10) injunctive relief under Business and Professions Code, (11) abuse of process – fraud upon the court, (12) violation of Consumers’ Legal Remedies Act, and (13) violation of the GLB Act. Plaintiff Alope Pal, proceeding <i>in pro per</i> (“Plaintiff”) opposes the motion. “A complaint, with certain exceptions, need only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ‘so long as [it] gives notice of the issues sufficient to enable preparation of a defense.’” [Citation.]” (<i>Morris v. JPMorgan Chase Bank, N.A.</i> (2022) 78 Cal.App.5th 279, 292.) “[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.’ [Citation.]” (<i>Morris v. JPMorgan Chase Bank, N.A.</i> (2022) 78 Cal.App.5th 279, 292.) “However, ‘[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced.’” (<i>Ibid.</i>) In determining the merits of a demurrer, “we accept as true all the material facts properly pleaded and we do not go beyond the four corners of the complaint, except as to matters which may be judicially noticed.” (<i>Thorburn v. Department of Corrections</i> (1998) 66 Cal.App.4th 1284, 1287–1288 [emphasis added].) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action [citation].” (<i>SKF Farms v. Superior Court</i> (1984) 153 Cal.App.3d 902, 905. “No error or defect in a pleading is to be regarded unless it affects substantial rights.” (<i>Harris v. City of Santa Monica</i> (2013) 56 Cal.4th 203, 240.) “The primary function of a pleading is to give the